

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rose Lantigua (S14)	Team: Squad #14	CCRB Case #: 201701504	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 02/27/2017 7:29 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/27/2018	Precinct: 104		
Date/Time CV Reported Fri, 03/10/2017 4:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/16/2017 4:32 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Galatioto	16797	957609	104 PCT
2. POM Gregory Montalbano	16254	957866	104 PCT
3. SGT Edward Johnson	02055	943410	104 PCT
4. POM Thomas Weil	30346	949788	104 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Galatioto	Abuse: Police Officer Joseph Galatioto entered and searched § 87(2)(b) in Queens.	A . Unsubstantiated
B . POM Gregory Montalbano	Abuse: Police Officer Gregory Montalbano entered and searched § 87(2)(b) in Queens.	B . Unsubstantiated
C . SGT Edward Johnson	Abuse: Sergeant Edward Johnson entered and searched § 87(2)(b) in Queens.	C . Unsubstantiated
D . POM Thomas Weil	Abuse: Police Officer Thomas Weil entered and searched § 87(2)(b) in Queens.	D . Unsubstantiated
E . SGT Edward Johnson	Abuse: Sergeant Edward Johnson threatened to arrest § 87(2)(b)	E . Exonerated
F . SGT Edward Johnson	Abuse: Sergeant Edward Johnson refused to provide his shield number to § 87(2)(b)	F . Unsubstantiated
G . SGT Edward Johnson	Off. Language: Sergeant Edward Johnson made a remark based upon the gender of § 87(2)(b)	G . Unsubstantiated

Case Summary

On March 10, 2017, § 87(2)(b) filed this complaint via the CCRB's Call Processing System.

On February 27, 2017, at approximately 7:29 p.m., Police Officer Joseph Galatioto, Police Officer Gregory Montalbano, Sergeant Edward Johnson, and Police Officer Thomas Weil of the 104th Precinct responded to § 87(2)(b)'s home at § 87(2)(b) in Queens. § 87(2)(b) of the Administration for Children's Services ("ACS") was outside of the location pursuant to an order mandating that ACS take custody of § 87(2)(b)'s son, § 87(2)(b) and § 87(2)(b)'s boyfriend, § 87(2)(b). § 87(2)(b) were present inside of the apartment. PO Galatioto, PO Montalbano, Sgt. Johnson, and PO Weil allegedly entered the apartment absent consent (**Allegations A through D**).

§ 87(2)(b) told Sgt. Johnson not to rush her son and in response, he allegedly showed his handcuffs to § 87(2)(b) and said either, "You about to get arrested" or "Oh, you want to get arrested then in front of your son" (**Allegation E**). § 87(2)(b) later asked Sgt. Johnson for his name and shield number, to which he allegedly responded, "I don't have to give it to you" (**Allegation F**).

§ 87(2)(b) was eventually removed from the apartment, but was allowed to return to check on § 87(2)(b) and collect the rest of his property. After doing so, he returned downstairs and overheard Sgt. Johnson say, "I should have pepper sprayed that bitch" to the other officers.

No summonses or arrests resulted from this incident.

There is no video evidence in this case.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of July 11, 2017, § 87(2)(b) has not filed a Notice of Claim with the New York City Comptroller's Office regarding this incident (Board Review 02).

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed 11 additional CCRB complaints § 87(2)(b)

§ 87(2)(b)

- This is the first CCRB complaint filed against PO Galatioto, a two-year-member-of-service (see officer history).
- PO Montalbano has been a member of the NYPD for two years, and has three allegations in one other case, case number 201705059, which remains open in the investigations division. § 87(2)(g) (see officer history).
- Sgt. Johnson has been a member of the NYPD for 10 years, and has 18 other allegations in 10 cases. In case number 20106739, allegations of refusal to provide name and shield number and discourtesy were unsubstantiated. In case number 201111401, a discourtesy allegation was unsubstantiated. In case number 201307355, an offensive language allegation truncated. § 87(2)(g) (see officer history).
- PO Weil has been a member of the NYPD for seven years, and has three allegations in two open cases. In case number 201304846, a physical force allegation was substantiated and PO Weil forfeited 15 vacation days. In case number 201504648, a discourtesy allegation was unsubstantiated. § 87(2)(g) (see officer history).

Potential Issues

- § 87(2)(b)'s boyfriend, § 87(2)(b) was uncooperative with the investigation and § 87(2)(b) was unavailable to the investigation (see IAs for contact attempts).
- § 87(2)(b) said that a male ACS employee was present with § 87(2)(b) during this incident, but § 87(2)(b) did not obtain that employee's name and he was not identified on any paperwork that stemmed from this incident.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that two officers entered § 87(2)(b)'s bedroom, and that two officers, including "Sgt. Johnson," entered the kitchen. During his CCRB interview, PO Galatioto acknowledged entering § 87(2)(b)'s bedroom. § 87(2)(g) § 87(2)(b) alleged that all four officers were present inside of the apartment. § 87(2)(g).

Allegation Not Pleaded

Abuse of Authority: § 87(2)(b) alleged that Sgt. Johnson refused to provide his name to her. However, § 87(2)(b) provided Sgt. Johnson's name to the CCRB during her interview, and Sgt. Johnson said, and § 87(2)(b) corroborated, that Sgt. Johnson did provide his name to § 87(2)(b) during this incident. § 87(2)(g).

Allegation A –Abuse of Authority: Police Officer Joseph Galatioto entered § 87(2)(b) in Queens.

Allegation B –Abuse of Authority: Police Officer Gregory Montalbano entered § 87(2)(b) in Queens.

Allegation C –Abuse of Authority: Sergeant Edward Johnson entered § 87(2)(b) in Queens.

Allegation D –Abuse of Authority: Police Officer Thomas Weil entered § 87(2)(b) in Queens.

§ 87(2)(b) said that § 87(2)(b) spoke to the officers at the front door and that § 87(2)(b) then informed her that the officers were there to remove § 87(2)(b) § 87(2)(b) who was not present for the conversation between § 87(2)(b) and the officers, became upset, exited her bedroom, and told the officers that she would report them to IAB and the CCRB if they tried “any funny business.” PO Galatioto was in § 87(2)(b) s bedroom with one of the other officers while Sgt. Johnson was in the kitchen with the fourth officer (Board Review 04).

As mentioned above, § 87(2)(b) was uncooperative with the investigation.

§ 87(2)(b) said that Sgt. Johnson asked § 87(2)(b) whether the officers could enter the apartment and she consented but asked them to wait until she dressed herself. Sgt. Johnson allegedly pushed the front door open and entered the apartment anyway. § 87(2)(b) asked the officers why § 87(2)(b) had to be removed and asked them to leave the apartment, but they did not do so (Board Review 05).

Sgt. Johnson and PO Galatioto said that § 87(2)(b) verbally consented to them entering the apartment. Sgt. Johnson said that he spoke to § 87(2)(b) at the front door of the apartment, but PO Galatioto said that this conversation took place outside of the building. PO Montalbano did not recall § 87(2)(b) verbally consenting to the officers entering the apartment, but said that § 87(2)(b) escorted them upstairs and opened the door for them, which he interpreted as consent. PO Weil did not recall whether there was a conversation between the officers and § 87(2)(b) or § 87(2)(b) about consent to enter the apartment. PO Weil and Sgt. Johnson said that they remained in the kitchen, near the front door, until § 87(2)(b) was ready to leave. PO Montalbano acknowledged that he entered § 87(2)(b) s apartment, but did not specify which rooms. PO Galatioto said that he accompanied § 87(2)(b) to his bedroom and waited for him to gather his property (Board Review 06, Board Review 07, Board Review 08, and Board Review 09).

§ 87(2)(g)

§ 87(2)(g) . It is therefore recommended that **Allegations A through D** be closed as **unsubstantiated**.

Allegation E –Abuse of Authority: Sergeant Edward Johnson threatened to arrest § 87(2)(b)

§ 87(2)(b) said that she was leaning against a door in the kitchen when Sgt. Johnson ordered her to move away from the door and she refused. In her initial account of the incident, § 87(2)(b) said that Sgt. Johnson removed his handcuffs and said, “You about to get arrested.” In her second account of the incident, she said that Sgt. Johnson walked towards her and took his handcuffs out without saying anything. In her final account of the incident, § 87(2)(b) alleged that Sgt. Johnson said, “Oh you want to get arrested then in front of your son.” § 87(2)(b) told Sgt. Johnson to arrest her, and that black officers always want to come off hard. § 87(2)(b) eventually calmed herself down and moved away from the door. She was not arrested.

§ 87(2)(b) said that § 87(2)(b) prevented him from leaving the apartment by physically holding him back. Sgt. Johnson told her that he was going to “take her down” and put her in handcuffs if she did not move away from the door. § 87(2)(b) said that § 87(2)(b) was recording the incident (although § 87(2)(b) acknowledged that she removed her cell phone to record the incident, she said she never actually recorded anything) and in response, told Sgt. Johnson to “do it on camera.” Sgt. Johnson told § 87(2)(b) that he was going to take her down if she did not put her phone down. He put his hands on his handcuffs, and counted to three. § 87(2)(b) said she would file a complaint.

All four officers said that § 87(2)(b) initially yelled and cursed at them, and later prevented them from removing § 87(2)(b) by blocking the front door with her body. According to Sgt. Johnson, PO Galatioto, and PO Weil, § 87(2)(b) made racial remarks toward Sgt. Johnson. Sgt. Johnson clarified that she referred to him as a “nigger.” Sgt. Johnson said that § 87(2)(b) voluntarily moved away from the door after he told her that he would place her under arrest if she did not do so. During his CCRB interview, Sgt. Johnson said that he could have arrested § 87(2)(b) for disorderly conduct, although PO Galatioto and PO Weil said that because § 87(2)(b) blocked the front door and refused to allow the officers or ACS to remove § 87(2)(b) she could have been arrested for obstructing governmental administration.

According to Article 240.20 of the New York Penal Law, a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof; they (1) engage in fighting or in violent, tumultuous, or threatening behavior, (2) make unreasonable noise, (3) in a public place, use abusive or obscene language, or make an obscene gesture, (4) without lawful authority, they disturb any lawful assembly or meeting of persons, (5) obstruct vehicular or pedestrian traffic, (6) congregate with other persons in a public place and refuse to comply with a lawful order of the police to disperse, or (7) create a hazardous or physically offensive condition by any act which serves no legitimate purpose (Board Review 10).

According to Article 195.05 of the New York Penal Law, a person is guilty of obstructing governmental administration when they intentionally obstruct, impair, or prevent the administration of law or other governmental function or prevents or attempts to prevent a public

servant from performing an official function, by means of intimidation, physical force or interference (Board Review 11).

Allegation F –Abuse of Authority: Sergeant Edward Johnson refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) said § 87(2)(b) asked Sgt. Johnson for his name and shield number while she recorded the incident (although § 87(2)(b) denied recording the incident). In response, Sgt. Johnson stated his name and asked § 87(2)(b) to “record” his shield number.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unsubstantiated**.

Sgt. Johnson denied that he made the alleged statement and PO Galatioto, PO Montalbano, and PO Weil denied hearing Sgt. Johnson do so.

§ 87(2)(g)

. It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Squad: **14**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date